

**NEW YORK STATE SUPREME COURT
BRONX COUNTY**

MILAGROS SIERRA,

Plaintiff,

-against-

THE CITY OF NEW YORK, a municipal entity; New York City Police Officers Det. JUAN GOMEZ, and "JOHN DOES" Nos. 1, 2, 3, etc. (whose identities are unknown but who are known to be personnel of the New York City Police Department), all of whom are sued individually and in their official capacities.

Defendants.

Index No.**SUMMONS**

Plaintiff designates
Bronx County as the
County of Venue

Venue is based upon
location where claims
arose.

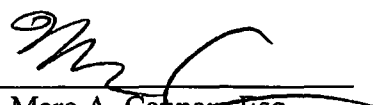
TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon plaintiff's attorney, at their address stated below, an answer to the attached complaint.

If this summons was personally served upon you in the State of New York, the answer must be served within 20 days after such service of the summons, excluding the date of service. If the summons was not personally delivered to you within the State of New York, the answer must be served within 30 days after service of the summons is complete as provided by law. If you do not serve an answer to the attached complaint within the applicable time limitation, a judgment may be entered against you, by plaintiff, for the relief demanded in the complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for the County of Bronx. This action is brought in the County of Bronx because it is the place in which the torts originated.

Dated: February 26, 2018
New York, New York

By: 

Marc A. Cahman, Esq.
BELDOCK LEVINE & HOFFMAN LLP
Attorneys for the Plaintiff
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To: CITY OF NEW YORK
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

Det. JUAN GONZALEZ (Shield No. 27575)
NYPD 52nd Precinct
3016 Webster Ave.
Bronx, New York 10467

**NEW YORK STATE SUPREME COURT
BRONX COUNTY**

----- X
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COMPLAINT

JURY TRIAL

Plaintiff, MILAGROS SIERRA ("Plaintiff"), by her attorneys Beldock Levine &
Hoffman LLP, as and for her complaint, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action brought under 42 U.S.C. § 1983 for violation of rights guaranteed to Plaintiff by the Fourth and Fourteenth Amendments to the United States Constitution, and violations of the common law and the Constitution of the State of New York by defendants CITY OF NEW YORK ("CITY"), New York City Police Department ("NYPD") Detectives JUAN GOMEZ ("Det. GOMEZ") and NYPD Police Officers "JOHN DOES", Nos. 1, 2, 3, etc. ("Officer DOES").

2. Plaintiff seeks redress for substantial injuries she suffered when she was unlawfully detained, frisked, arrested, and maliciously prosecuted. The defendant police officers approached Plaintiff as she was shopping at a bodega on Kingsbridge Road and Aqueduct Avenue in the Bronx, New York, and, without any suspicion of illegal activity,

stopped her, seized her purse, and, without obtaining her consent, began searching through her purse and questioning her. Although the police officers did not find any contraband or evidence of criminal activity on Plaintiff, they falsely charged her with criminal possession of a weapon. The charge was eventually dismissed.

3. Plaintiff seeks (i) compensatory damages for psychological and emotional distress, and financial loss caused by the illegal actions of the defendants; (ii) punitive damages to deter other injuries or reckless deviations from well-settled constitutional law; and (iii) costs, attorney's fees, and such other and further relief as this Court deems equitable and just.

JURISDICTION

4. This is a civil rights action brought pursuant to 42 U.S.C. § 1983 for violations of Plaintiff's rights secured by the Fourth and Fourteenth Amendments to the United States Constitution; and for violations of Plaintiff's rights under Article 1 §§ 1, 6, and 12 of the New York State Constitution and the statutory and common law of New York State.

5. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

VENUE

6. Pursuant to CPLR 503 and 504, venue is proper in the Bronx because it is the county in which Plaintiff resides and where the events giving rise to this action took place.

JURY DEMAND

7. Plaintiff demands a trial by jury in this action on each and every one of their claims for which jury trial is legally available.

THE PARTIES

8. Plaintiff MILAGROS SIERRA is a citizen of the United States. She was at all times relevant to this complaint a resident of Bronx County, City and State of New York.

9. Defendant CITY is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department and does maintain the NYPD which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The CITY assumes the risks incidental to the maintenance of a police force and the employment of police officers.

10. Det. GOMEZ and Officer DOES were NYPD Police Officers who, *inter alia*, unlawfully stopped, searched, and falsely arrested Plaintiff, without suspicion of any illegal activity, and lodged false criminal charges against her. Upon information and belief, defendants Det. GOMEZ and Officer DOES are still NYPD Police Officers.

11. At all times relevant herein, Det. GOMEZ and Officer DOES acted under color of state law in the course and scope of their duties and/or functions as agents, employees, and/or officers of the CITY and/or the NYPD, and incidental to the lawful pursuit of their duties as agents, employees, and/or officers of the CITY and/or the NYPD.

12. At the times relevant herein, Det. GOMEZ and Officer DOES violated clearly established rights and standards under the Fourth and Fourteenth Amendments to

the United States Constitution and under equivalent New York State constitutional provisions, of which reasonable police officers in their circumstances would have known.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

13. Plaintiff served her Notice of Claim upon the City of New York electronically, using the eClaim system on the New York City Comptroller's website on June 15, 2017, within ninety days of the events giving rise to Plaintiff's claims.

14. Plaintiff attended a hearing pursuant to section 50-h of the New York General Municipal Law on September 12, 2017.

15. More than thirty days have elapsed since Plaintiff served her Notice of Claim and the CITY has not offered adjustment or payment thereof.

16. This action is filed within one year and ninety days of the events giving rise to Plaintiff's claims.

STATEMENT OF FACTS

17. Plaintiff is a lifetime resident of the Bronx, New York.

18. On March 17, 2017, at approximately 2:30 pm, Plaintiff entered a bodega located on the corner of Kingsbridge Road and Aqueduct to purchase some candy.

19. Shortly thereafter, Defendant Det. GOMEZ and Officer DOES entered the bodega.

20. Det. GOMEZ announced the police officers' presence.

21. Without reasonable suspicion to believe that Plaintiff was engaged in any unlawful activity, Officer DOE, who was in uniform and wearing a white shirt, approached Plaintiff and asked her what had in her purse.

22. Without obtaining Plaintiff's consent, Officer DOE yanked Plaintiff's purse out of her hand and began searching it.

23. Officer DOE pulled a utility knife out of Plaintiff's purse.

24. The utility knife did not have a blade which was released from the handle or sheath thereof by the force of gravity or the application of centrifugal force which, when released, is locked in place by means of a button, spring, lever or other device.

25. The utility knife consisted of a razorblade that was fitted into a metal holder and enclosed in a metal sheath.

26. To expose the blade of the utility knife, you had to hold the holder containing the razorblade with one hand while pulling down the sheath with your other hand.

27. Officer DOE told Plaintiff, in sum and substance, "Is that all you have? I'll just give you a D.A.T. Just work with me."

28. The police officers placed Plaintiff in handcuffs and transported her to the 52nd Precinct, where she was processed by Det. GOMEZ.

29. After having been in custody for several hours, Det. GOMEZ released Plaintiff from custody with a Desk Appearance Ticket.

30. The Desk Appearance Ticket prepared by Det. GOMEZ falsely charged Plaintiff with Criminal Possession of a Weapon in the 4th Degree (PL 265.01(1)), a Class A Misdemeanor.

31. Plaintiff was forced to appear at the Bronx County Supreme Court, Criminal Term, on May 17, 2017.

32. When she went to the criminal court on May 17, 2017, Plaintiff was informed that the charges against her had been dismissed.

33. At all times relevant herein, the individual defendant police officers were engaged in a joint venture. The individual police officers assisted each other in performing the various actions described and lent their physical presence and the support and authority of their office to each other during said events.

34. Defendants' conduct caused Plaintiff to suffer loss of liberty, emotional and psychological pain, embarrassment, humiliation, harm to her reputations, and deprivation of her constitutional rights.

FIRST CAUSE OF ACTION

**42 U.S.C. § 1983 – Violations of Fourth and Fourteenth Amendment Rights
(Individual Defendants)**

35. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

36. In committing the acts and omissions complained of herein, the individual defendants acted under color of state law to deprive Plaintiff of certain constitutionally protected rights under the Fourth, and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to be free from unreasonable search and seizure of her person;
- b. the right to be free from arrest without probable cause;
- c. the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion, or legal justification, and of which detention Plaintiff was aware and to which she did not consent;
- d. the right to be free from the lodging of false criminal charges against her by police officers;
- e. the right to be free from malicious prosecution by police officers, that being prosecution without probable cause that is instituted with malice and that ultimately terminated in Plaintiff's favor; and

- f. the right to be free from deprivation of liberty without due process of law.

37. As a direct and proximate result of defendant NYPD police officers Det. GOMEZ's and Officer DOES' deprivation of Plaintiff's constitutional rights, Plaintiff suffered the injuries and damages set forth above.

38. Defendant NYPD police officers Det. GOMEZ and Officer DOES committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

SECOND CAUSE OF ACTION
Violations of the New York State Constitution
(Individual Defendants)

39. Plaintiff realleges and incorporates by reference each-and-every allegation set forth in the foregoing paragraphs as if fully set forth herein.

40. The individual defendants subjected Plaintiff to the foregoing acts and omissions without due process of law, thereby depriving Plaintiff of rights, privileges, and immunities guaranteed by Article 1, §§ 1, 6, and 12 of the New York State Constitution, including, without limitation, the following:

- a. Plaintiff was deprived of her rights and privileges guaranteed by Article 1, § 1 of the New York State Constitution;
- b. Plaintiff was deprived of her right to due process guaranteed by Article 1, § 6 of the New York State Constitution; and
- c. Plaintiff was deprived of her right to be free from unreasonable searches and seizures guaranteed by Article 1, § 12 of the New York State Constitution.

41. As a direct and proximate result of defendant NYPD police officers Det. GOMEZ's and Officer DOES' deprivations of Plaintiff's rights, privileges, and

immunities guaranteed by the New York State Constitution, Plaintiff suffered the injuries and damages set forth above.

42. Defendant NYPD police officers Det. GOMEZ and Officer DOES committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

THIRD CAUSE OF ACTION

**Assault and Battery
(Individual Defendants)**

43. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

44. Defendant NYPD police officers Det. GOMEZ and Officer DOES, without just cause, wilfully and maliciously used physical force against Plaintiff causing her injuries.

45. Defendant NYPD police officers Det. GOMEZ and Officer DOES committed the foregoing acts intentionally, wilfully, and with malicious disregard for Plaintiff's rights, and are therefore liable for punitive damages.

FOURTH CAUSE OF ACTION

**False Imprisonment
(Individual Defendants)**

46. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

47. Defendant NYPD police officers Det. GOMEZ and Officer DOES, through the foregoing acts, caused Plaintiff to be wrongfully detained without good faith,

reasonable suspicion, or legal justification, and of which detention Plaintiff was aware and to which she did not consent.

48. Defendant NYPD police officers Det. GOMEZ and Officer DOES committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

FIFTH CAUSE OF ACTION

Malicious Prosecution

(Individual Defendants)

49. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

50. Defendant NYPD police officers Det. GOMEZ and Officer DOES, through the foregoing acts, maliciously commenced a criminal proceeding against Plaintiff, which ended in her favor, without probable cause to believe Plaintiff was guilty of the crimes charged.

51. Defendant NYPD police officers Det. GOMEZ and Officer DOES committed the foregoing acts intentionally, willfully, and maliciously, and are therefore liable for punitive damages.

SIXTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress

(Individual Defendants)

52. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

53. Defendant NYPD police officers Det. GOMEZ and Officer DOES, through the foregoing acts, did commit extreme and outrageous conduct and thereby intentionally, and/or recklessly caused Plaintiff to experience severe mental and emotional distress, pain, suffering, and damage to name and reputation.

54. Defendant NYPD police officers Det. GOMEZ and Officer DOES committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

SEVENTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress
(Individual Defendants)

55. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

56. As police officers acting in the performance of their duties, defendant NYPD police officers Det. GOMEZ and Officer DOES owed Plaintiff a duty of care.

57. In breach of that duty, defendant NYPD police officers Det. GOMEZ's and Officer DOES' foregoing conduct endangered Plaintiff's safety and caused her to fear for her safety.

58. As a result, Plaintiff suffered emotional distress.

EIGHTH CAUSE OF ACTION
Negligence
(Individual Defendants)

59. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

60. Defendant NYPD police officers Det. GOMEZ and Officer DOES owed Plaintiff a duty of care, including the duty to exercise due care in-the-course-of their duties as NYPD officers and the duty to protect citizens from the intentional misconduct of other NYPD officers.

61. Defendant NYPD police officers Det. GOMEZ and Officer DOES, by the foregoing acts, negligently failed to use due care in the performance of their duties in that they failed to perform their duties with the degree of care that a reasonably prudent and careful officer would have used under similar circumstances.

62. All of these acts were performed without any negligence on the part of Plaintiff and were the proximate cause of injuries to Plaintiff.

DEMAND FOR RELIEF

WHEREFORE, Plaintiff demands the following relief against the Defendants, jointly and severally:

- (a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;
- (b) punitive damages from defendant NYPD police officers Det. GOMEZ and Officer DOES to the extent allowable by law;
- (c) attorney's fees;
- (d) the costs and disbursements of this action;
- (e) interest; and
- (f) such other and further relief as this Court deems just and proper.

Dated: New York, New York
February 26, 2018

BELDOCK LEVINE & HOFFMAN LLP
99 Park Avenue, Suite 2600
New York, New York 10016
(212) 490-0400
/s/Marc A. Cannan
Marc A. Cannan

Attorneys for Plaintiff Milagros Sierra

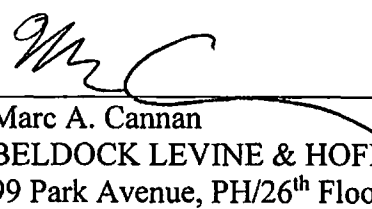
ATTORNEY'S VERIFICATION

I, Marc A. Cannan, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

I am the attorney of record for the Plaintiff, Milagros Sierra.

I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, and other pertinent information contained in my files.

Dated: February 26, 2018
New York, New York

By: 

Marc A. Cannan
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